

Comments for Planning Application DM2025/01591

Application Summary

Application Number: DM2025/01591

Address: Ambulance Station Dorset Road Belmont SM2 6JH

Proposal: Change of use from Sui Generis (Ambulance Station) to mixed use Classes F1 (Places of Worship) and F2 (Community Hub) involving the erection of a part one, part two storey front and side extension, increase in height to part of building and provision of cycle and refuse stores.

Case Officer: Polly Davidson

Customer Details

Name: Mr Wasim Riyas

Address: 1 Stanstead Manor 59 Cheam Road Sutton SM1 2AY

Comment Details

Commenter Type:

Stance: Customer made comments in support of the Planning Application

Comment Reasons:

Comment: We acknowledge the concerns raised by local residents and recognise the importance of safeguarding highway safety, residential amenity and emergency access. These are legitimate material planning considerations and deserve careful assessment.

It is important to clarify at the outset that the former ambulance station has not been operational for some time and no longer functions as an emergency facility. Any representations that assume the continued operation of an ambulance centre should therefore be considered in light of the site's current inactive status. When objectively assessed against national and local planning policy, the submitted Transport Statement, the site's lawful fallback use, and the proposed mitigation measures, the concerns raised do not demonstrate a level of planning harm that would justify refusal. The evidence presented so far does not indicate severe residual cumulative impacts on highway safety, parking, or residential amenity.

Common Objection: Increased arrivals during school drop-off/pick-up will endanger children.

Response:

The congregation has been operating since 2021 from a church site located closer to Avenue Primary Academy than the proposed site. During this period, there have been no recorded safety incidents, enforcement actions, or substantiated complaints relating to highway danger associated with Friday prayer attendance. The proposed site on Dorset Road is situated further from the school than the existing venue. As such, the relocation would not intensify school gate pressures and may reasonably be expected to reduce any perceived interaction with school-run pedestrian flows.

Importantly, no technical highway evidence has been submitted demonstrating that the proposal would create an unacceptable risk to pedestrian safety. There is no Road Safety Audit identifying a hazard, nor any objection from the Highway Authority indicating that the residual cumulative impacts would be severe.

In planning terms, the former ambulance station benefits from a lawful Sui Generis use. Historically, it generated 24-hour operational activity, emergency vehicle dispatches, staff shift-change movements, and unpredictable high-speed departures. That lawful fallback position could resume without requiring planning permission and would result in more frequent and less predictable vehicle movements than the proposed managed and time-limited prayer use.

Under the National Planning Policy Framework, development should only be refused on highway grounds where there would be an unacceptable impact on highway safety or where the residual cumulative impacts would be severe. No such evidence has been demonstrated in this case.

Accordingly, the objection is speculative rather than evidence-based and does not meet the policy threshold for refusal.

Common Objection: Inadequate On-Site Parking & Overspill

Refutation: The cited figure of 69 vehicles originates from our own Transport Statement and represents a deliberately robust, worst-case overlap scenario during the busiest Friday prayer period. This modelling assumes maximum theoretical attendance, minimal car-sharing, and a temporary overlap between departing and arriving attendees within a short transition window. It is important to emphasise that this represents a stress-tested assessment scenario rather than a prediction of typical operational conditions. Such precautionary modelling is standard transport practice and reflects transparency rather than an expectation of routine impact.

In practice, congregation patterns observed since 2021 at the existing venue demonstrate materially different behaviour. Attendance is characterised by significant walking from nearby residential areas, and use of public transport and when needed, significant car sharing. Arrival and dispersal are naturally staggered rather than occurring as a single concentrated surge. During this established period of operation closer to the school and within the same local highway network, there have been no recorded enforcement actions or substantiated complaints evidencing systemic parking harm. Real-world operational evidence therefore provides a more reliable indicator of likely impact than a theoretical maximum scenario.

It is also relevant that Avenue Road and its surrounding network currently accommodate regular bus movements, including the S4 and S2 routes, without recorded obstruction or operational difficulty. The continued functioning of scheduled bus services through the road network demonstrates that the Road width and general layout are capable of accommodating routine

vehicular activity. There is no technical evidence before the Council indicating that the proposal would compromise the safe passage of buses or emergency vehicles, nor that the residual cumulative impact would reach the "severe" threshold set out in national planning policy.

Furthermore, on-street parking in residential areas is a normal and lawful component of suburban street function. Planning policy does not require all parking demand to be contained within a site boundary, particularly for community uses within established neighbourhoods. The relevant test is not whether any overspill may occur, but whether the residual cumulative impacts would be unacceptable or severe. No highway authority objection or technical safety audit has identified such harm.

The applicant has also proposed, and is willing to accept by condition, a comprehensive Travel Plan and Parking Management Strategy, including stewarding during peak periods, promotion of sustainable travel modes, and monitoring mechanisms. Such measures are standard and enforceable planning tools commonly applied to places of worship and community facilities across the borough. Where impacts can be appropriately managed through condition, refusal would not be proportionate.

When considered in the round - including the site's lawful fallback position as a 24-hour operational ambulance facility generating unpredictable vehicle movements - the proposed managed and time-limited use does not demonstrate severe residual cumulative impacts on parking or highway safety. The evidence therefore does not substantiate refusal on parking grounds.

Emergency Access & Response

Refutation: We recognise that concerns have been raised regarding the potential impact of on-street parking on emergency access and response times. The safe and unobstructed passage of emergency vehicles is a fundamental public safety consideration and is rightly treated as a material planning matter.

However, it is important to consider the historic and lawful use of the site. The premises operated as an ambulance station - an emergency response facility - generating 24-hour operational activity, including staff shift changes and the dispatch of emergency vehicles at speed. The local highway network was therefore previously deemed suitable for regular emergency vehicle movements associated directly with life-saving operations. In comparison, the proposed use would generate time-limited and predictable peak movements of significantly lower intensity and urgency than those historically associated with an operational ambulance base.

There is no evidence before the Council that the highway layout has materially changed in a way that would now render emergency access unsuitable. Nor has any technical objection been raised by the Highway Authority or emergency services indicating that the proposal would compromise

response resilience. In planning terms, concerns regarding emergency access must be supported by professional highway assessment or demonstrable evidence of likely obstruction. Speculative assertions, in the absence of technical analysis, do not meet the policy threshold required to justify refusal.

Furthermore, the surrounding road network currently accommodates routine vehicular activity, including scheduled bus services, without recorded operational difficulty. There is no objective evidence to suggest that the managed and time-limited nature of the proposed use would result in sustained obstruction or materially increase the risk of delayed emergency response.

When assessed objectively against its lawful fallback position and in the absence of technical evidence demonstrating unacceptable impact, the proposal does not give rise to a substantiated emergency access concern sufficient to warrant refusal.

Operating 07:00-22:00(and occasionally 23:00) and Residential Amenity

Refutation: We acknowledge the concerns raised regarding operating hours and the potential for late-evening disturbance to neighbouring residents. The protection of residential amenity, including safeguarding against unacceptable noise and disturbance, is a core planning consideration and warrants careful assessment.

The proposed hours of community use between 07:00 and 22:00 are consistent with the operation of many community facilities across London boroughs. Places of worship, community halls, and similar Class F1 and F2 uses commonly operate until 22:00, which is widely regarded within planning practice as a standard and reasonable closing time for community activities in residential areas. Such hours do not, in themselves, constitute evidence of unacceptable impact.

Concerns have also been expressed regarding dispersal noise during evening periods. It is important to distinguish between transient and routine activity - such as people conversing, car doors closing, or vehicles departing - and forms of noise typically associated with commercial nightlife uses. The proposal does not involve amplified music and licensed late-night entertainment. Planning policy and environmental health practice differentiate between significant noise nuisance and ordinary residential comings and goings. Brief dispersal activity, particularly when managed, does not automatically equate to material harm.

It is also relevant that the congregation has been operating from St John's Church for approximately three years, including occasional use extending to 22:00-23:00, without recorded noise complaints, enforcement action, or substantiated evidence of residential disturbance. This established operational history provides tangible real-world evidence that the nature of the use does not inherently give rise to unacceptable amenity impacts.

Should the Council consider it necessary, operating hours and a Noise Management Plan can be secured by condition. Such conditions are standard, enforceable, and proportionate planning tools used to ensure ongoing protection of residential amenity. Where impacts can be appropriately

controlled through condition, refusal would not be justified.

Finally, it is material to consider the site's lawful fallback position. As an operational ambulance station, the premises historically functioned on a 24-hour basis, including emergency vehicle dispatches involving sirens and rapid response movements. Such activity would have been materially louder and more intrusive than the managed, time-limited community use now proposed. In comparison, the proposed use represents a significantly reduced intensity of disturbance.

When assessed objectively, and in light of established operational evidence, enforceable mitigation measures, and the site's historic lawful use, the proposal does not demonstrate a level of noise or residential impact that would warrant refusal on amenity grounds.

Common Objection: Constrained Road Network and Cul-de-Sac Character

Refutation: Concerns have been raised that Dorset Road and surrounding streets, including Balmoral Way, function as a constrained residential network with limited turning space and effectively single-route access, such that even short peak surges may have disproportionate impacts. While the cul-de-sac character of parts of the network is acknowledged, this characteristic alone does not render a site unsuitable for community use.

Many suburban community facilities, including places of worship, nurseries and community halls, are located within cul-de-sacs or semi-enclosed residential streets across London boroughs. Planning policy does not prohibit such uses in these settings; rather, the assessment turns on whether the highway network can safely and functionally accommodate anticipated movements without severe residual impact.

In this case, there is no technical evidence demonstrating that the local network lacks sufficient capacity to absorb short-duration peak movements. The busiest period identified in the Transport Statement relates to a temporary overlap window during Friday prayer, lasting approximately 60-90 minutes. This does not represent sustained all-day congestion, but a predictable and time-limited peak. Short-lived increases in vehicular activity do not equate to systemic highway failure.

Furthermore, the lawful fallback position must be considered. As an operational ambulance station, the site historically generated 24-hour vehicle movements, including emergency dispatches requiring rapid departure and priority access through the same road network. Those movements were inherently less predictable and more intensive than the managed, time-limited peaks now proposed. If the network was suitable for emergency fleet operations, it cannot reasonably be characterised as fundamentally incapable of accommodating a controlled community use.

The suggestion that drivers will circulate excessively, undertake unsafe manoeuvres, or create

persistent obstruction remains speculative in the absence of modelling or recorded evidence from existing operations. The congregation has been operating nearby since 2021 without substantiated reports of systemic highway harm, despite being located closer to sensitive receptors. Real-world experience is, therefore, a material indicator of likely impact.

There is no capacity assessment, traffic count data, or modelling before the Council demonstrating that Dorset Road or adjoining streets operate at or near capacity during existing peak periods. In the absence of such evidence, it cannot reasonably be concluded that short-duration additional movements would result in network failure or unsafe conditions.

Importantly, the policy test is not whether additional vehicles may enter the network at peak times, but whether the residual cumulative impacts would be severe. No technical objection from the Highway Authority has been identified concluding that the cul-de-sac nature of the road results in an unacceptable safety risk or functional failure.

Conclusion:

When the proposal is assessed in the round, the key question for the Council is whether the development would give rise to unacceptable impacts, having regard to national and local planning policy.

First, in relation to highway matters, the National Planning Policy Framework is clear that development should only be refused on transport grounds where there would be an unacceptable impact on highway safety, or where the residual cumulative impacts would be severe. No technical evidence has been presented demonstrating that the proposal would meet this threshold. There is no highway authority objection identifying severe impact, no Road Safety Audit evidencing danger, and no professional assessment concluding that emergency access would be compromised. The concerns raised, while understandable, remain speculative rather than evidence-based.

Secondly, it is necessary in planning law to consider the lawful fallback position. The site previously operated as a 24-hour ambulance station, generating emergency dispatches, staff shift changes, and rapid-response vehicle movements, including sirens at unsocial hours. That use could lawfully resume without further planning permission. By comparison, the proposed use involves predictable, time-limited peak periods, significantly reduced intensity of vehicle movements, and no night-time emergency operations. It is objectively quieter, more controlled, and more limited in scope than the historic lawful use. The assessment of impact must be undertaken against that realistic fallback baseline.

Thirdly, there is an established and ongoing local need. The congregation is not a new or speculative use; it already exists and has been operating from premises closer to the school since 2021 without substantiated enforcement action or recorded safety incidents. The proposal does not introduce a new congregation into the area, but instead formalises and relocates an existing

use to a site further removed from sensitive receptors. The real-world operational history is therefore an important material consideration.

Finally, the proposed use falls within Class F1 and F2, which are intended to support community, cultural and social infrastructure. Community facilities promote social cohesion, provide structured youth engagement, reduce isolation, and support integration within established neighbourhoods. Planning policy at both national and local levels supports the retention and provision of community facilities unless demonstrable harm clearly outweighs the public benefit. In this case, the asserted harms have not been substantiated to the policy threshold required for refusal.

For these reasons, when objectively assessed against planning policy, transport evidence, the lawful fallback position, and the established operational history, the proposal does not give rise to severe residual cumulative impacts on highway safety. The Local Highway Authority has not objected on grounds of highway safety, parking, emergency access, or residential amenity. The material considerations support approval.